



United States
Attorney's Office
Southern District of Florida



Two Miami Men Sentenced to Nearly Five Years in Prison for \$28 Million Scheme Involving Diverted Pharmaceuticals

Friday, December 5, 2025

For Immediate Release

U.S. Attorney's Office, Southern District of
Florida

MIAMI – Two men were each sentenced on Oct. 30 to 57 months in federal prison for their roles in two separate but related schemes involving the sale of diverted and misbranded pharmaceutical drugs, including medications used to treat HIV and cancer.

According to court documents, Boris Arencibia, 52, and Jose Armando Rivera Garcia, 45, both of Miami, purchased high-priced prescriptions medications from illicit street sources—including patients who sold their prescriptions instead of taking the drugs and individuals who obtained prescriptions through fraud. These medicines require carefully controlled storage conditions to remain effective, but the diverted drugs were stored without any safeguards.

"Diverted drugs put patients' lives at risk," said U.S. Attorney Jason A. Reding Quiñones for the Southern District of Florida. "These defendants pushed tainted and repackaged medications into pharmacies across the country, knowing full well the danger. Our Office will continue to work with FDA, HHS-OIG, and the FBI to protect patients and hold accountable anyone who turns the healthcare system into a criminal marketplace."

After purchasing the drugs, members of the conspiracy repackaged them and falsified paperwork to make it appear as though the medicines were supplied directly by manufacturers or legitimate wholesalers. The conspirators marketed the drugs through fake pharmaceutical distribution companies and shipped them to pharmacies across the U.S., where unsuspecting patients purchased them. In some cases, bottles contained incorrect medications, vitamins, or even pebbles—endangering patients' health.

The first case, indicted in 2019, involved a conspiracy of 20 defendants. All but one fugitive have now been sentenced to prison terms ranging from 30 months to 14 years. Arencibia was among those who

procured large quantities of diverted drugs from street sources and sold them to other conspirators. Rivera Garcia established a corporation, LDD Distributors, which received the drugs from Arencibia and sold them to a wholesale distributor operated by another defendant. Arencibia and Rivera Garcia each pleaded guilty to conspiracy to commit money laundering, for using financial transactions to conceal the source and ownership of proceeds from the misbranded drugs.

The second case, filed in 2025, charged Arencibia and Rivera Garcia with operating a pharmaceutical wholesale company that marketed diverted drugs to pharmacies nationwide using falsified documentation to conceal the medicines' true origins and conditions. Arencibia and Rivera Garcia pleaded guilty to trafficking in medical products with falsified documentation.

In total, Arencibia and Rivera Garcia sold approximately \$28 million worth of diverted pharmaceuticals between the two schemes.

U.S. District Judge Darrin P. Gayles sentenced Arencibia and Rivera Garcia to 57 months in prison in the 2019 case, to be served concurrently with the 43-month prison terms imposed in the 2025 case.

U.S. Attorney Jason A. Reding Quiñones for the Southern District of Florida; Acting Special Agent in Charge Kelly McCoy of the U.S. Food and Drug Administration, Office of Criminal Investigations (FDA-OCI), Miami Field Office; Acting Special Agent in Charge Jesus Barranco of the U.S. Department of Health and Human Services, Office of Inspector General, (HHS-OIG), Miami Regional Office; and Special Agent in Charge Brett D. Skiles of the FBI, Miami Field Office, made the announcement.

The 2019 case was investigated by FDA-OCI and FBI Miami, and the 2025 case was investigated by HHS-OIG.

Assistant U.S. Attorney Frank Tamen prosecuted the 2019 case, and Trial Attorney Jacqueline Zee DerOvanesian of the Department of Justice's Fraud Section prosecuted the 2025 case. Assistant U.S. Attorney Nicole Grosnoff is handling asset forfeiture.

Related court documents and information may be found on the website of the District Court for the Southern District of Florida at www.flsd.uscourts.gov or at <http://pacer.flsd.uscourts.gov>, under case numbers 19-cr-20674 and 25-cr-20154.

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